

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (“Agreement”) is entered into as of _____ (“Effective Date”) by and between **SIINGE STUDIO** (“Studio”) and _____ (“Client”), collectively referred to as the “Parties.”

The Parties wish to explore and potentially engage in one or more business relationships now or in the future, which may involve the disclosure of certain confidential or proprietary information (“Purpose”). This Agreement protects all such Confidential Information exchanged between the Parties, regardless of whether it pertains to a single project or multiple engagements.

1. Confidential Information

“Confidential Information” includes any non-public proprietary information disclosed by either Party—whether disclosed orally, in writing, visually, digitally, or through observation—including but not limited to: designs, concepts, technical data, business plans, financials, client details, trade secrets, product ideas, manufacturing methods, or marketing strategy.

2. Excluded Information

Information is **not** deemed confidential if it:

- Was already known to the receiving Party without confidentiality obligation;
- Is or becomes publicly available through no fault of the receiving Party;
- Is rightfully received from a third party without breach of any obligation;
- Is independently developed by the receiving Party without use of Confidential Information.

3. Obligations of Confidentiality

Each Party shall:

- Use Confidential Information solely for the Purpose;
- Not disclose it to third parties without prior written consent;
- Restrict access only to employees or contractors with a direct need to know, who are bound by similar confidentiality obligations;
- Employ reasonable measures to prevent unauthorized disclosure.

4. Return or Destruction

Upon written request or termination of this Agreement, each Party will promptly return or destroy all Confidential Information of the other Party, including all copies and derivatives—unless retention is required by law or for permissible record-keeping.

5. Portfolio and Promotional Use (Carve-Out)

Studio may publicly display behind-the-scenes imagery or process content from any work performed under this Agreement in its professional portfolio and on social media platforms, **provided** no Confidential Information or proprietary client data is revealed.

Client may similarly share work-in-progress or process content publicly and agrees to credit or tag Studio in any such social media or promotional posts. Studio will likewise credit or tag Client in its posts related to the work.

These rights to display or share process-related content shall survive the expiration or termination of this Agreement, unless revoked in writing by mutual consent.

6. No License or Business Commitment

This Agreement does not grant any license or ownership rights in Confidential Information, nor does it obligate either Party to enter into any business transaction.

7. Term and Survival

This Agreement is effective as of the Effective Date and remains in force for **three (3) years**, covering all Confidential Information disclosed during the term. Confidentiality obligations survive for three (3) years after the final disclosure of confidential information, regardless of termination date.

8. Injunctive Relief

Each Party acknowledges that breach of this Agreement could cause irreparable harm, and agrees that the other Party may seek injunctive relief and any other remedies available in law or equity.

9. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the **State of Colorado**, with jurisdiction lying in the courts of Colorado.

10. Entire Agreement

This Agreement constitutes the entire understanding between the Parties regarding Confidential Information and supersedes any prior agreements or discussions.

11. Client Responsibility for Public Use

Client agrees not to misrepresent, alter, or publicly share any part of the Studio's process, content, or methods in a misleading or damaging manner. Client shall indemnify and hold harmless Studio from any claims, damages, or liabilities arising from Client's public use, misuse, or misrepresentation of Studio's content or documentation, whether online or otherwise.

IN WITNESS WHEREOF

SIINGE STUDIO

By: Sierra White

Name: Sierra White

Title: Founder of SIINGE STUDIO

Date: _____

Client

By: _____

Name: _____

Title: _____

Date: _____